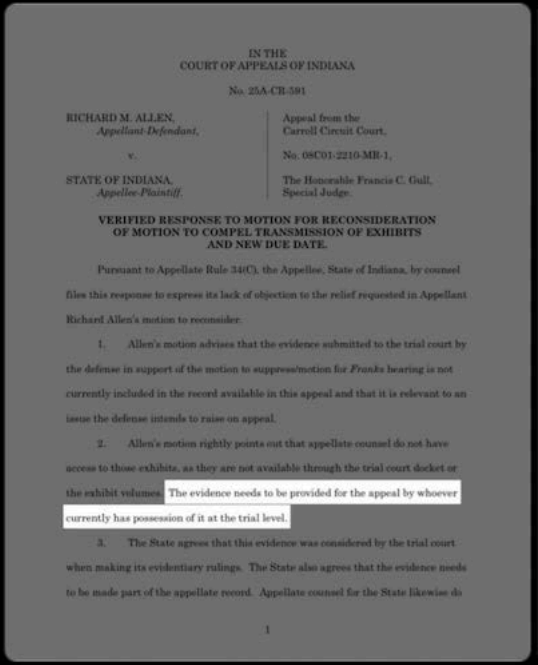
All Eyes
@alleyesondelphi

Even the AG is like, guys, whoever has it, just send it to the Appellate attorneys gahd.

Judge Gull is the last person on record to have possession of Franks exhibits. Fingers crossed they're not gone girl by now...

#RichardAllen #Delphi



IN THE
COURT OF APPEALS OF INDIANA

No. 25A-CR-591

RICHARD M. ALLEN, *Appellant-Defendant,*	Appeal from the Carroll Circuit Court,
v.	No. 08C01-2210-MR-1,
STATE OF INDIANA, *Appellee-Plaintiff.*	The Honorable Francis C. Gull, Special Judge.

VERIFIED RESPONSE TO MOTION FOR RECONSIDERATION OF MOTION TO COMPEL TRANSMISSION OF EXHIBITS AND NEW DUE DATE.

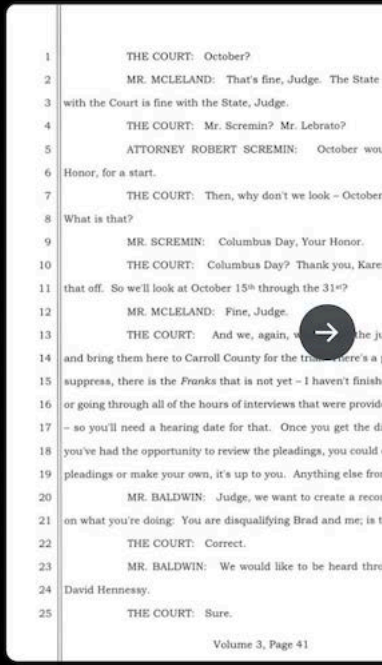
Pursuant to Appellate Rule 34(C), the Appellee, State of Indiana, by counsel files this response to express its lack of objection to the relief requested in Appellant Richard Allen's motion to reconsider.

1. Allen's motion advises that the evidence submitted to the trial court by the defense in support of the motion to suppress/motion for *Franks* hearing is not currently included in the record available in this appeal and that it is relevant to an issue the defense intends to raise on appeal.

2. Allen's motion rightly points out that appellate counsel do not have access to those exhibits, as they are not available through the trial court docket or the exhibit volumes. The evidence needs to be provided for the appeal by whoever currently has possession of it at the trial level.

3. The State agrees that this evidence was considered by the trial court when making its evidentiary rulings. The State also agrees that the evidence needs to be made part of the appellate record. Appellate counsel for the State likewise do

1



THE COURT: October?
MR. MCLELAND: That's fine, Judge. The State with the Court is fine with the State, Judge.
THE COURT: Mr. Scremin? Mr. Lebrato?
ATTORNEY ROBERT SCREMIN: October wou Honor, for a start.
THE COURT: Then, why don't we look – October What is that?
MR. SCREMIN: Columbus Day, Your Honor.
THE COURT: Columbus Day? Thank you, Kare that off. So we'll look at October 15th through the 31st?
MR. MCLELAND: Fine, Judge.
THE COURT: And we, again, w he ju and bring them here to Carroll County for the tri here's a suppress, there is the *Franks* that is not yet – I haven't finish or going through all of the hours of interviews that were provid – so you'll need a hearing date for that. Once you get the d you've had the opportunity to review the pleadings, you could pleadings or make your own, it's up to you. Anything else fro
MR. BALDWIN: Judge, we want to create a reco on what you're doing: You are disqualifying Brad and me; is t
THE COURT: Correct.
MR. BALDWIN: We would like to be heard thro David Hennessy.
THE COURT: Sure.

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IN THE
COURT OF APPEALS OF INDIANA

No. 25A-CR-591

RICHARD M. ALLEN, *Appellant-Defendant*, v. STATE OF INDIANA, *Appellee-Plaintiff*.	Appeal from the Carroll Circuit Court, No. 08C01-2210-MR-1, The Honorable Francis C. Gull, Special Judge.

VERIFIED RESPONSE TO MOTION FOR RECONSIDERATION OF MOTION TO COMPEL TRANSMISSION OF EXHIBITS AND NEW DUE DATE.

Pursuant to Appellate Rule 34(C), the Appellee, State of Indiana, by counsel files this response to express its lack of objection to the relief requested in Appellant Richard Allen's motion to reconsider.

1. Allen's motion advises that the evidence submitted to the trial court by the defense in support of the motion to suppress/motion for *Franks* hearing is not currently included in the record available in this appeal and that it is relevant to an issue the defense intends to raise on appeal.

2. Allen's motion rightly points out that appellate counsel do not have access to those exhibits, as they are not available through the trial court docket or the exhibit volumes. The evidence needs to be provided for the appeal by whoever currently has possession of it at the trial level.

3. The State agrees that this evidence was considered by the trial court when making its evidentiary rulings. The State also agrees that the evidence needs to be made part of the appellate record. Appellate counsel for the State likewise do

THE COURT: October?

MR. MCLELAND: That's fine, Judge. The State – whatever is fine with the Court is fine with the State, Judge.

THE COURT: Mr. Scremin? Mr. Lebrato?

ATTORNEY ROBERT SCREMIN: October would be fine, Your Honor, for a start.

THE COURT: Then, why don't we look – October 14 is marked off. What is that?

MR. SCREMIN: Columbus Day, Your Honor.

THE COURT: Columbus Day? Thank you, Karen. You may mark that off. So we'll look at October 15th through the 31st?

MR. MCLELAND: Fine, Judge.

THE COURT: And we, again, would pick the jury in Fort Wayne and bring them here to Carroll County for the trial. There's a pending motion to suppress, there is the *Franks* that is not yet – I haven't finished even reading it or going through all of the hours of interviews that were provided on a flash drive – so you'll need a hearing date for that. Once you get the discovery and once you've had the opportunity to review the pleadings, you could either adopt those pleadings or make your own, it's up to you. Anything else from the State?

MR. BALDWIN: Judge, we want to create a record on – to be clear on what you're doing: You are disqualifying Brad and me; is that correct?

THE COURT: Correct.

MR. BALDWIN: We would like to be heard through my attorney, David Hennessy.

THE COURT: Sure.

MR. BALDWIN: And then, there was one more recent, and I'll just throw that in, as well, for you to take judicial notice of the one filed a week or two or ago – I don't remember the date – for purposes of this argument.

THE COURT: And when did you file that one?

MR. BALDWIN: I don't have that at the tip of my tongue here, Judge. It was a week – probably two weeks ago.

THE COURT: I don't see one filed two or three weeks ago.

MR. BALDWIN: Give me a second. I just don't have it, but I know it was filed.

THE COURT: Well, I can't take judicial notice of something you can't tell me about. March 13th.

MR. BALDWIN: March 13th.

THE COURT: Well, I'll take judicial notice of the *Franks* motions filed September 18th, October 2nd, October 3rd of 2023, and March 13th of 2024.

MR. BALDWIN: Is – Judge, does that include all the exhibits? Which I'm asking for judicial notice of all the exhibits, as well.

THE COURT: I don't see exhibits attached to this last one.

MR. BALDWIN: Yeah, there – I don't think there were on that one.

THE COURT: And I don't see exhibits from the ones in October, either.

MR. BALDWIN: Then, just the first one.

THE COURT: Ms. Diener, you may proceed.

MS. DIENER: Thank you. The State would call Steve Mullin.

(Witness sworn.)

DIRECT EXAMINATION OF STEPHEN MULLIN